IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-III

ITEM No. 101
CA.CAA-72/ND/2025

IN THE MATTER OF:
Western UP Tollway Private Limited and its shareholders .... Petitioner/Applicant

Order under Section 230-232 of the Companies Act.

Order delivered on 01.09.2025

CORAM :
SHRI BACHU VENKAT BALARAM DAS
HON'BLE MEMBER (JUDICIAL)

DR. SANJEEV RANJAN
HON'BLE MEMBER (TECHNICAL)

HYBRID HEARING (PHYSICAL & VC)

PRESENT:
For Applicant : Mr. Satwinder Singh, Mr. Lokesh Dhyani, Mr. P. Jain, Mr. Yash Jain Advs.
For Respondent :

ORDER

This application has been filed by M/s. Western UP Tollway Private Limited and its shareholders under Section 230-232 of the Companies Act seeking the following prayers:-

A. *To dispense the requirement of convening meetings of equity shareholders as all such equity shareholders have already given their consent affidavits;*

B. *To dispense the requirement of convening meetings of secured creditors as there are no secured creditors in the Company;*

C. *To dispense the requirement of convening meetings of unsecured creditors as unsecured creditors representing more than 92% of the total outstanding debt towards unsecured creditors have already given their consent affidavits;*

D. *Direct the Applicant Company to publish the notice of Application in the 'Business Standard' in English Language and 'Jansatta' in Hindi language of 'Delhi' editions;*

E. *Direct the Applicant Company to serve the notice of Application upon the following authorities in terms of the*

provisions of section 230(5) of the Companies Act, 2013 read with rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016:

i. *Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs at B-2 Wing, 2nd Floor, Paryavaran Bhawan, CGO Complex, New Delhi-110003 ("Regional Director");*

ii. *Registrar of Companies, National Capital Territory of Delhi and Haryana at 4 th Floor, IFCI Tower, 61, Nehru Place, New Delhi-110019 ("Registrar of Companies");*

iii. *Jurisdictional income tax authorities.*

F. *This Hon'ble Tribunal may further be pleased to direct the Regional Director, Registrar of Companies & Income Tax to file their report(s)/ affidavit(s) in respect of this Application within 30 (Thirty) days from the date of receipt of the notices;*

G. *Allow this present Application;*

H. *Pass such other order{s) as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the present case.*

We have heard the submissions of Ld. Counsel appearing on behalf of the Applicant.

Order **reserved.**

-Sd-
(DR. SANJEEV RANJAN)
MEMBER (TECHNICAL)

-Sd-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

SURBHI